

iLaunchify, Inc.

Incorporation and Post-Incorporation Checklist

Delaware C-Corporation, foreign qualified in Georgia · Started 25 July 2026 · Owner: Pavel

Not legal or tax advice. Have a startup attorney review the founder stock, vesting, and IP assignment sections before signing. The 83(b) deadline in Phase 2 is statutory and cannot be fixed after the fact.

Company facts (fill in as you go)

FIELD	VALUE
Exact legal name	
Delaware file number	
Date of incorporation	
Registered agent (DE)	
Authorized shares / par value	
EIN	
Fiscal year end	31 December
GA control number	
Date of GA certificate of authority	

The four dates that actually matter

DEADLINE	WHAT	WHY IT HURTS
Stock issuance + 30 days	83(b) elections filed	Statutory. No extensions, no fix. Missing it means tax on paper gains as shares vest.
GA qualification + 90 days	Georgia initial annual registration	Required for entities registered before 1 October. Late fee, then risk of administrative dissolution.
1 March 2027	Delaware annual report and franchise tax	Penalties and interest, then loss of good standing.
15 April 2027	Federal Form 1120 for tax year 2026	Filed even with zero revenue.

PHASE 0 Formation

☐ **Confirm the name is available** in Delaware and not conflicting with an existing trademark.

Owner _____ Done _____

- ☐ **File Certificate of Incorporation** (Delaware One Stop, entity type = Corporation).
Check: 10,000,000 authorized shares at \$0.00001 par value. Do not accept a low-share, no-par default; it drives the franchise tax calculation.
Owner _____ Done _____
- ☐ **Appoint a Delaware registered agent** (budget \$50 to \$150 per year).
Provider _____ Owner _____ Done _____
- ☐ **Decline the Delaware business license and Delaware state tax registration.**
You do not operate in Delaware. Your operating registrations belong in Georgia.
Owner _____ Done _____
- ☐ **Save the stamped Certificate of Incorporation** somewhere permanent.
Owner _____ Done _____

PHASE 1 Make it a real company (same week)

- ☐ **Get the EIN** from the IRS (free, online, minutes).
Required before any bank will open an account.
EIN _____ Owner _____ Done _____
- ☐ **Adopt bylaws.**
Owner _____ Done _____
- ☐ **Action of the Incorporator** (appoints the initial board, then the incorporator steps out).
Owner _____ Done _____
- ☐ **Initial Board Consent**, covering:
- ☐ Adopt bylaws
 - ☐ Appoint officers (CEO and Secretary at minimum)
 - ☐ Authorize founder stock issuance
 - ☐ Set fiscal year end (31 December)
 - ☐ Authorize opening the bank account (Mercury will ask for this)
- Owner _____ Done _____
- ☐ **Indemnification agreements** for directors and officers.
Owner _____ Done _____

PHASE 2 Founder equity and the 30-day clock

This is the phase where mistakes are permanent. Do not let it drift.

- ☐ **Agree the equity split** among founders, in writing.

Owner _____ Done _____

- ☐ **Stock Purchase Agreements** signed by each founder.

☐ 4-year vesting with 1-year cliff on every founder, no exceptions

☐ Company repurchase right over unvested shares

☐ Purchase price actually paid, by wire or check, with a record

Owner _____ Done _____

- ☐ **Record the stock issuance date:** _____

This is the date the 83(b) clock starts, not the incorporation date.

- ☐ **83(b) election deadline (stock issuance + 30 days):** _____

- ☐ **File 83(b) elections, one per founder.**

File on IRS Form 15620, either through the IRS online portal or by mail. Only one method is needed. If filing online, confirm your share count and per-share price enter without rounding problems (the portal originally capped decimals in a way that broke \$0.0001 pricing; limits were expanded in late 2025).

☐ Founder 1 _____ filed _____ proof saved _____

☐ Founder 2 _____ filed _____ proof saved _____

☐ Founder 3 _____ filed _____ proof saved _____

☐ Copy of each election given to the company

☐ Proof of filing stored permanently (you may need it in 5 years)

- ☐ **IP assignment (CIIA) signed by every founder.**

Without this the company does not own the code, designs, or domains.

Owner _____ Done _____

- ☐ **IP assignment signed by every contractor or early contributor** who touched the product.

List anyone who wrote code, made designs, or built infrastructure: _____

Owner _____ Done _____

- ☐ **Check for prior-employer IP claims** on anything contributed.

Owner _____ Done _____

- ☐ **Stock ledger and cap table created** and reconciled to the signed documents.

Owner _____ Done _____

PHASE 3 Banking and operations

- ☐ **Open the Mercury account** using the exact legal name and EIN.

Have ready: Certificate of Incorporation, EIN letter, board consent authorizing the account, founder IDs.

Owner _____ Done _____

- ☐ **Transfer the founder stock purchase payments** into the account and keep the records.

Owner _____ Done _____

- ☐ **Move Stripe, domains, and vendor accounts** into the company name.

Owner _____ Done _____

- ☐ **Reconcile the charges Stripe already processed before the company existed.**

Live charges have already run through Stripe. Anything processed before the incorporation date legally belongs to you personally, not to the corporation. Decide with your CPA whether to assign those receipts and matching costs into the company or account for them separately. Handle this at the first CPA meeting, not at tax time.

☐ List every pre-incorporation charge, refund, and payout with dates and amounts

☐ Confirm which legal person or entity the Stripe account was registered to

☐ Written treatment decided and documented

☐ Stripe account ownership updated to the corporation and EIN going forward

Owner _____ Done _____

- ☐ **Set up bookkeeping** (QuickBooks or similar, connected to Mercury).

Owner _____ Done _____

- ☐ **Engage a CPA** who has done Delaware C-Corps with QSBS before.

Owner _____ Done _____

PHASE 4 Georgia registration

- ☐ **Foreign qualify with the GA Secretary of State** (Application for Certificate of Authority, about \$225).

Requires a Delaware certificate of existence dated within the last 90 days.

Owner _____ Done _____

- ☐ **Appoint a Georgia registered agent** (can be you, at a Georgia street address).

Owner _____ Done _____

- ☐ **File the Georgia initial annual registration within 90 days** of qualification.

Applies if you qualify before 1 October. If you qualify after 1 October, the first registration is due between 1 January and 1 April of the following year instead. Worth a call to the GA Corporations Division at (404) 656-2817 to confirm which applies to your date.

Deadline _____ Owner _____ Done _____

- ☐ **Register for Georgia state tax accounts** (Georgia Tax Center).

Corporate income and net worth tax now; withholding accounts only once you have payroll.

Owner _____ Done _____

- ☐ **Check local requirements** for a city or county business license at your operating address.

Owner _____ Done _____

PHASE 5 Recurring obligations

☐ **Delaware annual report and franchise tax, due 1 March each year.**

Use the assumed par value capital method. Delaware's default share-count method will quote you thousands; the assumed par value method typically lands near \$450 for a standard startup share structure.

Next due 1 March 2027 Done _____

☐ **Georgia annual registration, due between 1 January and 1 April each year (\$60).**

Next due 1 April 2027 Done _____

☐ **Federal Form 1120, due 15 April each year.**

Filed even with no revenue.

Next due 15 April 2027 Done _____

☐ **Georgia corporate income and net worth tax return.**

Next due _____ Done _____

☐ **Registered agent renewals** (Delaware and Georgia).

Next due _____ Done _____

PHASE 6 Risk and revenue operations

These are not incorporation steps, but they are the items most likely to become expensive if they go unaddressed. Insurance and revenue recognition both want handling before the marketplace runs at volume.

Insurance

Contracts allocate risk between you and your partners. They do not pay claims. Your platform puts food, supplements, cosmetics, and pet products into the world carrying FDA-regulated labels, so if an end consumer is harmed, plaintiff's counsel names everyone in the chain, including the platform that orchestrated the order.

☐ **Find a broker who has placed coverage for a marketplace or platform before.**

A generic small business policy will not understand your risk. Ask specifically whether they have written product liability for a company that does not manufacture.

Owner _____ Done _____

☐ **General liability.**

Carrier _____ Premium _____ Done _____

☐ **Product liability.**

The critical one for your model. Confirm the policy responds when the product was made by a partner and sold under a creator's brand.

Carrier _____ Premium _____ Done _____

☐ **Technology errors and omissions / professional liability.**

Carrier _____ Premium _____ Done _____

☐ **Cyber liability**, given you hold creator and partner data.

Owner _____ Done _____

☐ **Confirm how your partner agreements interact with the policies.**

Check whether your indemnities and additional-insured requirements on partners match what your own carrier expects. Mismatches here are how coverage gaps happen.

Owner _____ Done _____

☐ **Directors and officers (D&O):** defer until you raise, then buy before the first outside board member joins.

Owner _____ Done _____

Sales tax and marketplace facilitator rules

☐ **Determine whether iLaunchify is a marketplace facilitator** in each state where goods ship.

Facilitator statutes vary by state and can shift collection duty onto the platform rather than the seller. Your answer drives whether you collect and remit, or whether partners do.

Owner _____ Done _____

☐ **Map economic nexus** as order volume grows.

Thresholds are usually revenue or transaction count per state per year. This creeps up on you quietly.

Owner _____ Done _____

- ☐ **Decide who is the seller of record** for each order type and document it.

Owner _____ Done _____

- ☐ **Confirm the platform never labels a platform charge as "tax."**

Already the standing rule internally ("Administrative fee", never "tax"). Keep it that way; mislabeling a fee as tax creates real exposure.

Owner _____ Done _____

- ☐ **Pick a tax engine if collection is required** (Avalara, TaxJar, Stripe Tax).

Owner _____ Done _____

Revenue recognition: gross versus net

- ☐ **Get a written principal versus agent determination from your CPA.**

Booking gross order value as revenue versus booking only the platform fee produces wildly different top-line numbers. Investors will ask, and restating later is painful. The analysis turns on who controls the goods before transfer, who sets price, and who bears inventory and fulfillment risk.

Owner _____ Done _____

- ☐ **Document the treatment of each money flow.**

☐ Creator tier fee (15 / 12 / 8 percent)

☐ Manufacturer merit withhold (4.5 / 2.5 / 0 percent)

☐ Production fee

☐ Freight recharges, including inter-partner hops

☐ Partner payouts

Owner _____ Done _____

- ☐ **Make sure the books mirror the pricing engine.**

One pricer is already the single source of truth for what gets charged. Accounting should reconcile to it rather than to a parallel model.

Owner _____ Done _____

- ☐ **Set a subscription revenue policy** for creator tiers (deferred revenue over the term).

Owner _____ Done _____

Deliberately deferred

- ☐ **Equity incentive plan for employee options.** Wait until you have someone to grant to. Requires a 409A valuation at that point.

- ☐ **Preferred stock terms.** These come with the round itself, negotiated with the lead investor.

- ☐ **Trademark registration for "iLaunchify."** Not urgent, but do a clearance search before spending on brand assets.

No action needed

FinCEN beneficial ownership (BOI) reporting. A FinCEN interim final rule from March 2025 redefined "reporting company" to cover only entities formed outside the US. Companies formed in the US, including your Delaware corporation, are exempt. These rules have moved around a lot, so have your CPA confirm the position at filing time.

QSBS tracking

Your stock will be issued after 4 July 2025, so it falls under the current Section 1202 rules: 50% gain exclusion after 3 years held, 75% after 4 years, 100% after 5 years, capped at \$15M per shareholder (or 10x basis), with a \$75M company gross-asset ceiling.

FOUNDER	STOCK ISSUANCE DATE	3-YEAR DATE	4-YEAR DATE	5-YEAR DATE

☐ **Keep proof the company met the gross-asset test at issuance.**

Your CPA should document this now; reconstructing it years later is painful.

Owner _____ Done _____

Decision log

DATE	DECISION	REASONING
25 Jul 2026	Delaware C-Corp, not LLC or S-Corp	An S-Corp cannot take VC money (no entity shareholders, one class of stock) and its stock never qualifies for QSBS. Double taxation does not bite a startup that pays no dividends.
25 Jul 2026	Foreign qualify in Georgia	Taxes and registration follow where the business actually operates.
25 Jul 2026	Mercury as primary bank	Built for Delaware C-Corps, no fees or minimums, extended FDIC via sweep networks, native Stripe integration. Add a chartered bank as a second institution once balances are material.
25 Jul 2026	Harvard Business Services as DE registered agent, self as GA agent	\$50 per year with a price lock in Delaware. The Georgia agent can be you at a Georgia street address for free, accepting that the address becomes public record.
25 Jul 2026	No CPA on retainer until the entity exists	Compliance work (Form 1120, Delaware franchise tax, Georgia returns) is worth buying in year one at roughly \$650 to \$2,500. Managed bookkeeping is not worth it until transaction volume is real. Upgrade to a marketplace-literate CPA before the platform runs at volume.